

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	E – Services Households
	Section No./Name	E-400-SNAP Failure to Comply
	Document No./Name	E-410-SNAP Failure to Comply (FTC) Penalty
	Effective Date	January 10, 2022

I. STATEMENT OF POLICY

SNAP benefits will not be increased when a household's public assistance (FITAP, KCSP, or SSI) benefits are decreased (reduced, terminated, or suspended) due to the client's failure to comply (FTC) with a requirement of the Public Assistance (PA) program. The purpose of this policy is to reinforce sanctions imposed by the public assistance programs.

The prohibition against increasing the household's SNAP allotment will follow the individual who failed to comply with public assistance requirements. If the sanctioned person leaves the household, the prohibition against increasing the SNAP allotment will end for that household. If the sanctioned person joins another SNAP household before the public assistance sanction ends, the prohibition will apply to the new household.

E-411-SNAP – PO DETERMINATION OF FAILURE TO COMPLY

The individual or household must have been receiving PA at the time of the violation and the PA benefits must have been decreased or terminated because of the client's failure to comply.

The determination of Failure to Comply (FTC) with a FITAP, KCSP, STEP, or SSI program requirement is made by the PA worker. The SNAP worker does not make this determination.

The worker will receive a CAFÉ Alert when the inclusion code/reason for a member on the associated FITAP or KCSP case changes from included to excluded. Any FITAP sanction is considered to be the result of a failure to comply.

To impose a FTC penalty, the agency administering the PA program must advise that a Failure to Comply has occurred.

FTC policy does not apply under the following circumstances:

- While the individual is sanctioned for failure to comply with a SNAP work registration requirement, (see [B-1440-SNAP](#)) or ABAWD work requirement (see [B-1470-SNAP](#)).
- During the period of time the person is being sanctioned under SNAP rules for the same offense that a penalty is being imposed under a PA program.
- When the Social Security Administration does not cooperate in providing the necessary information.
- When the individual was not certified for SNAP at the time the failure to comply occurred in the PA program.
- When a SNAP household applied for PA and was denied or certified for a reduced amount due to failure to comply with a PA requirement.

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E-412-SNAP – PO FAILURE TO COMPLY (FTC) PENALTY PERIODS

The prohibition against increasing SNAP benefits as a result of the PA sanction will be in effect for the following time periods:

- If a FITAP family is work-eligible and their FITAP benefits are terminated due to a STEP sanction, the FTC penalty will be applied to their SNAP case for the following time periods:
 - STEP Sanction, Occurrence 1 - one month
 - STEP Sanction, Occurrence 2 - two months
 - STEP Sanction, Occurrence 3 - three months
- If a FITAP or KCSP family is not work-eligible and FITAP or KCSP benefits are terminated due to failure to comply with a FITAP or KCSP requirement, the FTC penalty for the SNAP case is for one month.
- If FITAP or KCSP benefits are reduced or terminated due to an IPV sanction, the FTC penalty for the SNAP case is for the length of the IPV sanction.

If SSI benefits are reduced or suspended due to failure to comply with an SSI requirement, the FTC penalty for the SNAP case is 3 months or until SSA no longer reports the failure to comply, whichever occurs first.

E-413-SNAP – PO DETERMINING THE SNAP FAILURE TO COMPLY (FTC) PENALTY AMOUNT

The SNAP FTC penalty amount is equal to the difference between the PA grant prior to the PA sanction and the grant amount after the sanction.

E-414-SNAP – PO OTHER CHANGES

Changes in the household's circumstances unrelated to the PA sanction must be reflected in the SNAP budget. Do not recalculate the SNAP FTC penalty unless the SNAP case is closed and the client reapplies.

If there are other changes in the household which affect the PA grant amount for the same benefit month as the imposition of a IPV sanction, determine the SNAP FTC penalty amount based on what occurred first, the IPV sanction or the household change.

Example: A FITAP recipient is currently receiving a grant for herself and three children. The adult is disqualified due to FITAP IPV sanction. The client also reports the birth of a fourth child. The amount of the SNAP FTC penalty depends on what happened first. If the IPV sanction occurred first, the SNAP FTC penalty amount would be * \$84 (the difference between \$564 and \$484.) If the request to add the child occurred first, the SNAP FTC penalty would be \$86 (the difference between \$654 and \$568.) **

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E-415-SNAP – PO CASE SUSPENSIONS OR CLOSURES

When a STEP, SSI, or IPV sanction is imposed which closes or suspends the PA case, continue to count the payment the household was authorized to receive immediately prior to the initial PA sanction for the following time periods:

- If a FITAP family is work-eligible and their FITAP benefits are terminated due to a STEP sanction, the FTC penalty will be applied to their SNAP case for the following time periods:
 - STEP Sanction, Occurrence 1 - one month

Example 1: The SNAP household consists of a mother and her two children, ages 3 and 4. The household income consists of a FITAP grant of * \$484. The client fails to comply with STEP, Occurrence 1 and is work-eligible. The FITAP grant is closed effective December. The FTC penalty is applied. The FTC penalty amount would be \$484 since that is the amount of the FITAP assistance the client was receiving prior to the STEP sanction. The FTC penalty will be shown in the SNAP budget for December only.

- STEP Sanction, Occurrence 2 - two months

Example 2: The SNAP household consists of a mother and her two children, ages 3 and 4. The household income consists of a FITAP grant of \$484. The client fails to comply with STEP, Occurrence 2 and is work-eligible. The FITAP grant is closed effective December. The FTC penalty is applied. The FTC penalty amount would be \$484 since that is the amount of the FITAP assistance the client was receiving prior to the STEP sanction. The FTC penalty will be shown in the SNAP budget for December and January only.

- STEP Sanction, Occurrence 3 - three months

Example 3: The SNAP household consists of a mother and her two children, ages 3 and 4. The household income consists of a FITAP grant of \$484. The client fails to comply with STEP, Occurrence 3 and is work-eligible. The FITAP grant is closed effective December. The FTC penalty is applied. The FTC penalty amount would be \$484 since that is the amount of the FITAP assistance the client was receiving prior to the STEP sanction. The FTC penalty will be shown in the SNAP budget for December, January, and February only.

- If a FITAP family is not work-eligible and FITAP benefits are terminated due to failure to comply with a FITAP requirement, the FTC penalty will be applied to their SNAP case for one month.

Example 4: The SNAP household consists of a mother and her two children, ages 3 and 4. The household income consists of a FITAP grant of \$484. ** The client fails to comply with FITAP requirement and is not work-eligible. The FITAP grant is closed effective December. The FTC

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penalty is applied. The FTC penalty amount would be * \$484 since that is the amount of the FITAP assistance the client was receiving prior to the FITAP sanction. The FTC penalty will be shown in the SNAP budget for December only.

- If FITAP benefits are reduced or terminated due to an IPV sanction, the FTC penalty will be applied to the SNAP case for the length of the IPV sanction.

Example 5: The FITAP grant is closed due to an IPV sanction. The FITAP grant was \$484 prior to the sanction. The FTC penalty amount is \$484 and is applied to the SNAP budget for the length of the IPV sanction.

- If SSI benefits are reduced or suspended due to failure to comply with an SSI requirement, the FTC penalty will be applied to the SNAP case for 3 months or until SSA no longer reports the failure to comply, whichever occurs first.

Example 6: The FITAP grant is closed due to an SSI sanction. The SSI amount was \$841 prior to the sanction. The FTC penalty amount of \$841 ** is applied to the SNAP budget for 3 months or until SSA no longer reports the failure to comply, whichever is first.

E-416-SNAP – PO SSI FAILURE TO COMPLY (FTC) PENALTY

If a reduction in SSI benefits is due to a readily identifiable change such as, but not limited to, receipt of additional income, it is not necessary to contact SSA to determine the reason for the change.

If the reason for the reduction or suspension of SSI benefits is not known, verify the reason through SSA documents. If the SSA document or query response does not specifically identify the reduction or suspension as resulting from a Failure to Comply, do not apply a penalty.

Complete a case note to reflect the attempts to verify the reason for the SSI reduction.

Example - An SSI check is reduced. The reason for the reduction is not known. The worker is unable to obtain information from SSA concerning the reason for the reduction. The reduced SSI amount is shown in the SNAP budget and the attempts to verify the reason for the reduction are documented with a case note.

II. PROCEDURES

The case record must be documented or a case note made to reflect the PA program's determination of Failure to Comply. Budget the FTC amount as unearned income for the appropriate sanction period.

When notification is received from the PA program that the household's benefits will be reduced due to an IPV sanction, the SNAP FTC penalty must be imposed at the same time.

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Budget the PA amount the household actually receives in addition to the SNAP FTC penalty amount. Budget the penalty amount for the duration of the IPV sanction.

Example: A FITAP grant is reduced from \$568 to \$484 because an adult relative has been disqualified due to FITAP IPV. The actual amount of FITAP the household receives (\$484) plus the SNAP FTC penalty (\$84) will be included in the SNAP budget. This will continue for the duration of the FITAP IPV sanction. (For budgeting procedures see LAMI Informational Memorandum, [L-050](#).)

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

[7CFR 273.7\(f\)](#)

LAC 67:III, Subpart 3, Chapter 19, Subchapter G